

Smt. Urmila Devi v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 16 July 2021 · Writ-C No. 10265 of 2021 · **Writ disposed of; petitioner directed to Clause 6.5; coercive recovery stayed one month subject to compliance.**

HEADNOTE

A consumer who challenged recovery of electricity dues exceeding Rs.16 lakh without first seeking bill correction under Clause 6.5 of the U.P. Electricity Supply Code, 2005 was held to have an adequate alternative statutory remedy under that clause. The writ was disposed of with a time-bound direction to file a proper 6.5 application, for respondent no.5 to communicate the Clause 6.5(b)(ii) pre-deposit, and for a reasoned order after deposit, with coercive recovery stayed for one month subject to compliance.

FACTUAL SUMMARY

Smt. Urmila Devi challenged a recovery certificate dated 31 October 2020 under which electricity dues exceeding Rs.16 lakh were sought against account no. 741800574811. She alleged the demand was excessive and that the bill needed correction. The licensee's counsel replied that she had not applied under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and that the demand was therefore justified. After two video-conference adjournments, a Division Bench heard the writ on 16 July 2021.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — alternative statutory remedy

HOLDING

Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an adequate alternative statutory remedy for correction of a disputed electricity bill. Where the consumer has not applied under that clause, the writ is disposed of with a direction that if a proper application disputing the bill is filed before respondent no.5 within two weeks, that respondent shall within one week communicate the pre-deposit required under Clause 6.5(b)(ii); upon deposit within a further two weeks, respondent no.5 shall verify the claim and pass a reasoned order within a week. Coercive measures are stayed for one month subject to compliance. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the recovery certificate was disposed of because Clause 6.5 is an adequate alternative statutory remedy for bill correction, and no counter affidavit was called. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The Court treated Clause 6.5 as the statutory forum to test the consumer's claim that dues exceeding Rs.16 lakh were excessive, including communication of the Clause 6.5(b)(ii) pre-deposit. ¶ 1

bill-correction-clause-6.5 The petitioner's only pleaded grievance was that the billed amount needed correction; that grievance was sent to a proper Clause 6.5 application before respondent no.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED BILL AND OF THE RECOVERY CERTIFICATE DATED 31.10.2020

Merits of the Rs.16 lakh demand were left to respondent no.5 under Clause 6.5 after the prescribed pre-deposit; the writ was not decided on the bill. ¶ 1

